

Instructions For General Durable Power Of Attorney

Important! Read Before Using This Form

ND Legal Self Help Center staff and court employees **can't help you fill out the form(s). If you're unsure how to proceed, consult a lawyer.**

The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in the North Dakota state courts. The forms and information available through the North Dakota Legal Self Help Center aren't intended for legal advice but only as a general guide.

Any user of the forms or information is hereby advised that all forms and information are provided "as is." The forms and information provided may be subject to errors or omissions. The ND Legal Self Help Center **isn't** responsible for any consequences that may result.

Carefully read this information and any instructions, laws, or court rules to which you're referred. As a self-represented individual, you must independently determine if the forms and information are legally sufficient for your specific circumstances and for North Dakota.

If you're unsure if this information suits your circumstances, or if you don't know how to fill out these forms, consult a lawyer licensed to practice in North Dakota. Go to ndcourts.gov/legal-self-help/finding-a-lawyer for information about finding a lawyer to represent you.

A glossary with definitions of legal terms is available at ndcourts.gov/legal-self-help.

This information **isn't a complete statement of the law. The information can't replace the advice of a lawyer licensed in North Dakota. **Use at your own risk.****

[Chapter 30.1-30 of the North Dakota Century Code](#) contains laws enacted by the North Dakota State Legislature related to powers of attorney for adults. Chapter 30.1-30 is also available in print in many North Dakota public and academic libraries

Who May Use this Form?

The General Durable Power of Attorney form may be used by an individual 18 years of age or older to appoint someone to handle their financial or other decisions. A durable power of attorney **doesn't** include health care decisions.

A durable power of attorney remains in effect even when you're unable to make your own decisions.

Definitions Of Commonly Used Power Of Attorney Terms

Adult – An individual who is eighteen years of age or older.

Attorney-in-Fact – The person who is given the power of attorney for financial and other decisions. The Attorney-in-Fact isn't required to be an actual attorney.

Durable Power of Attorney – An instrument authorizing a person to act as the Attorney-in-Fact of the person granting the Power of Attorney. The authority granted is for financial or other decisions, but **doesn't** include health care decisions. **A Durable Power of Attorney remains in effect** when the person granting the power of attorney is unable to make their own decisions. (See also Power of Attorney).

Power of Attorney – An instrument authorizing a person to act as the Attorney-in-Fact of the person granting the Power of Attorney. The authority granted is for financial or other decisions, but **doesn't** include health care decisions. **A Power of Attorney doesn't remain in effect** when the person granting the power of attorney is unable to make their own decisions. (See also Durable Power of Attorney).

Principal – The adult individual who grants durable power of attorney to the Attorney-in-Fact.

Overview Of Power Of Attorney

What is a Durable Power of Attorney?

A Power of Attorney is a document authorizing a person to act as the Attorney-in-Fact of the Principal. A Power of Attorney ends when the Principal becomes unable to make their own decisions.

A **Durable** Power of Attorney **doesn't end** if the Principal becomes unable to make their own decisions. A Durable Power of Attorney remains in effect even if the Principal becomes disabled or incapacitated.

A Durable Power of Attorney is for financial or other decisions. Health care decisions **aren't** authorized in a Durable Power of Attorney. There's a different document for health care decisions called a [Health Care Directive](#).

The Attorney-in-Fact must be a responsible adult, but doesn't need to be an actual attorney.

The Durable Power of Attorney may:

- 1) take effect upon the signature of the Principal and remain effective if the Principal becomes disabled or incapacitated; or
- 2) take effect only when the Principal becomes disabled or incapacitated.

The Principal may revoke (end) the Durable Power of Attorney at any time, as long as they are legally competent. The Revocation must be in writing.

Does the Durable Power of Attorney Terminate (End) on the Death of the Principal?

Yes, the Durable Power of Attorney terminates (ends) on the death of the Principal (person who signed the Power of Attorney).

Is a Durable Power of Attorney a Court Order?

No, a Durable Power of Attorney **isn't** a court order, **isn't** a guardianship, and **isn't** a conservatorship.

Neither a Power of Attorney nor a Durable Power of Attorney require a court process to create. So, neither a Power of Attorney nor a Durable Power of Attorney are court orders.

Guardianships and conservatorships are court processes where a judge or judicial referee decides if an adult individual's circumstances meet the requirements for appointment of a guardian, conservator, or both.

When a judge or judicial referee appoints a guardian, conservator, or both, the court specifies in its order the decisions the guardian or conservator can make on behalf of the adult.

Legal Research Resources

A Durable Power of Attorney can have serious legal and financial consequences. Following are resources to get you started on your legal research.

Review [North Dakota Century Code Chapter 30.1-30](#). Chapter 30.1-30 may also be found in print in many North Dakota public and academic libraries.

Consult a lawyer. Only a lawyer who has agreed to represent you can take your circumstances, apply the law and give you advice about what you should do. Consult a lawyer for legal advice and carefully consider all of your options.

Legal Services of North Dakota Materials. Legal Services of North Dakota provides information on their website regarding Power of Attorney for Financial Decisions. Click on lsnd.org/power-of-attorney-for-financial-decisions.

Complete The General Durable Power Of Attorney Form

If you decide 1) a Power of Attorney suits your needs; **and** 2) you decide the General Durable Power of Attorney form is legally sufficient for North Dakota; **and** 3) you decide the form suits your circumstances, follow the instructions below.

- **First Sentence:**
 - Fill in the name of the person who is giving a Power of Attorney to another (attorney-in-fact). This person is called the Principal and is the person signing the document.
 - Fill in the Principal's address.
 - Fill in the name of the person the Principal is giving power of attorney. This person is called the Attorney-in-Fact.
 - Fill in the Attorney-in-Fact's address.
- **Paragraphs 1 and 2:**
 - **Read these paragraphs carefully!** These paragraphs are the authority you, the Principal, are granting the Attorney-in Fact.
 - **If you don't understand, or if you're unsure about what these paragraphs mean for you, consult a lawyer before signing.**
 - ND Legal Self Help Center staff and court system employees **can't** answer questions about what this form means for you.
- **Paragraph 3:**
 - Fill in the date the document is signed by you, the Principal.
- **Paragraph 4:**
 - Choose and checkmark(✓) **only one** option.
 - **First option:** the General Durable Power of Attorney takes effect as soon as the document is signed and stays in effect even if there's a disability or incapacity of the Principal.
 - **Second option:** the General Durable Power of Attorney takes effect only if there's a disability or incapacity of the Principal.

- **Paragraph 5:**
 - You, the Principal, may revoke the General Durable Power of Attorney in writing.
- **Signature and Notarization:**
 - You, the Principal, **must** sign and date the General Durable Power of Attorney in the presence of a Notary Public or Clerk of Court.

Revoking The Power Of Attorney

You, the Principal, may revoke the General Durable Power of Attorney at any time, if you're legally competent to do so.

Written notice of the revocation must be given to the Attorney-in-Fact and to anyone who has been given a copy of the General Durable Power of Attorney form.

If possible, you, the Principal, should collect and destroy the original Power of Attorney and all copies when the General Durable Power of Attorney is revoked.

General Durable Power Of Attorney

I, _____, the Principal, whose mailing address is:

designate and appoint _____, whose mailing address is:

as my Attorney-in-Fact and agent in my name and for my benefit:

1) General Grant of Power: To exercise or perform any act, power, duty, right or obligations that I now have, or may acquire in connection with, arising from or relating to any person, item, transaction, business, real or personal property, tangible or intangible thing or any matter whatsoever;

- a) Powers of Collection and Payment:** To request, ask, demand, sue for, recover, collect, receive, hold, and possess all such sums of money, debts, dues, commercial paper, checks, drafts, accounts, dividends, certificates of deposit, annuities, pension and retirement benefits, insurance benefits and proceeds, documents of title, real and personal property which I now have or should subsequently become owned by, or due, owing, payable or belonging to me, or in which I have or may subsequently acquire interest, to have, use and take all lawful means and equitable and legal remedies, procedures and writs in my name for their collection and recovery;
- b) Power to Acquire and Sell:** To lease, purchase, exchange, grant options to sell, sell, and convey real or personal property, tangible or intangible, including homestead property and under such covenants, as the attorney-in-fact shall deem proper;
- c) Management Powers:** To maintain, repair, improve, invest, manage, insure, rent, lease, encumber, and in any manner deal with any real or personal property, tangible or intangible rights or interests, that I now own or may subsequently acquire, in my behalf, and in my name under such terms and conditions as the attorney-in-fact shall deem proper; and
- d) Instruments:** To sign, seal, execute and deliver all instruments in writing of whatsoever kind and nature as may be necessary and proper.

2) This document is to be construed and interpreted as a general durable power of attorney. The listing of specific items, rights, acts or powers is not intended to, nor does it, limit or restrict, and is not to be construed or interpreted as limiting or restricting, the general powers granted to the Attorney-in-Fact.

3) The rights, powers, and authority of the Attorney-in-Fact granted shall begin and be in full force and effect on _____ (*date document is signed*).

4) Check One:

☐ This General Durable Power of Attorney shall not be affected by any subsequent disability or incapacity of the principal or by lapse of time. The rights, powers, and authority of the Attorney-in-Fact shall begin and be in effect on _____ (*date document is signed*).

☐ This General Durable Power of Attorney becomes effective upon the disability or incapacity of the principal.

5) This General Durable Power of Attorney may be revoked by the Principal at any time that the Principal has the capacity to do so. Any revocation must be in writing and delivered to the named Attorney-in-Fact. This General Durable Power of Attorney terminates (ends) on the death of the Principal.

Dated _____.

(Signature)

(Printed Name)

(Address)

(City, State, Zip Code)

(Telephone Number)

(Email Address)

Signed and sworn to before me on _____ by _____

(Notary Public or Clerk of Court)

If Notary, my commission expires: _____